

license. Petitioner's actions in those jobs might be sufficient to show the type of assistance required for aiding and abetting, such as providing all requested documentation (including a picture of the driver's licenses, insurance information and W9) and receiving payment from Done Right and providing a portion of that payment to Diaz.

In contrast to the work with Done Right, there is no evidence that Petitioner did anything to help Diaz on the job involving the Homeowner, which started in May 2022. The evidence does not show that Petitioner helped Diaz obtain the contract, do work on the Homeowner's house or helped Diaz process payments from the Homeowner.

Further, Petitioner testified that he started receiving complaints from dissatisfied homeowners about Diaz's unlicensed work after three or four months. Originally, he testified that this was early 2021, but later clarified that it was in mid, early 2022. (Transcript 78:14-80:2; 126:2-15; 128:2-11; 142:11-18.) Petitioner testified that once he learned that Diaz was using his license on other jobs, he contacted the CSLB office for advice and then called Diaz asking him to stop. Petitioner then learned that Diaz was still using his license so he submitted a nonpermission declaration to the CSLB in August 2022. (Transcript 81:9-21, 111:22-113:24; Exhibit L.) This conduct shows actions to stop Diaz.

The Court finds that the decision that Petitioner aided and abetting Diaz in doing unlicensed work at the Homeowner's property is not supported by the findings because there is no finding that Petitioner helped or assisted Diaz in regard to the Homeowner's project. Further, the evidence presented does not support such a finding.

Discipline Decision

The Court finds that the charge for violation of Business and Professions Code section 7114(a) is not supported by the evidence and therefore, the Registrar's disciplinary decisions are also not supported by the record.

Conclusion

The Court finds that the evidence supports the finding as to a violation of Business and Professions Code section 7125.4(a). The Court also finds that the evidence does not support a finding of a violation of Business and Professions Code section 7114(a) and therefore, the Registrar abused its discretion. Therefore, **the Court grants the writ.**

This matter is remanded to the Registrar with instructions to vacate the portion of its decision and order finding a violation of section 7114(a) and vacate the disciplinary findings. The Registrar shall reconsider the disciplinary findings and enter new disciplinary findings based upon the violation of 7125.4(a).

The parties shall meet and confer on the time needed to file a writ return. Petitioner shall prepare a proposed writ consistent with this ruling.

16. 9:01 AM CASE NUMBER: C24-02991
CASE NAME: ROSALYN NAVAL-ZAHNER VS. JOELLE SCIMIA
*HEARING ON MOTION FOR DISCOVERY COMPEL JOELLE MARY SCIMIA AMENDED RESPONSES TO
FORM INTEROGS, SET 1
FILED BY: NAVAL-ZAHNER, ROSALYN A.
TENTATIVE RULING:

Continued on the court's own motion to December 26, 2025, at 9 am.

17. 9:01 AM CASE NUMBER: C24-02991
CASE NAME: ROSALYN NAVAL-ZAHNER VS. JOELLE SCIMIA
*HEARING ON MOTION FOR DISCOVERY COMPEL JOELLE MARY SCIMIA AMENDED RESPONSES TO
REQUEST FOR ADMISSIONS
FILED BY: NAVAL-ZAHNER, ROSALYN A.
TENTATIVE RULING:

Continued on the court's own motion to December 26, 2025, at 9 am.

18. 9:01 AM CASE NUMBER: C24-02991
CASE NAME: ROSALYN NAVAL-ZAHNER VS. JOELLE SCIMIA
*HEARING ON MOTION FOR DISCOVERY COMPEL JOELLE MARY SCIMIA AMENDED RESPONSES TO
PROD OF DOCS; SET 1
FILED BY: NAVAL-ZAHNER, ROSALYN A.
TENTATIVE RULING:

Continued on the court's own motion to December 26, 2025, at 9 am.

19. 9:01 AM CASE NUMBER: C22-02814
CASE NAME: NA WANG VS. SETH WIENER
*HEARING ON MOTION IN RE: PROTECTIVE ORDER/TERMINATING SANCTIONS
FILED BY:
TENTATIVE RULING:

Moot.

20. 9:01 AM CASE NUMBER: C22-00901
CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH
*HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION AND PROD OF DOCS
FILED BY: SALEHOMOUM, MOJDEH
TENTATIVE RULING:

Hearing continued by the court to January 9, 2026, at 9 a.m. The opposition to the motion is due January 2, 2026.